

24STCV06620 24STCV06620

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 24STCV06620 Hearing Date: July 7, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

JESSICA

VALDIVIA,

Plaintiff,

vs.

JACQUELINE

SUZETTE, et al.,

Defendants

Case No.:

24STCV06620

Hearing

Date:

July 7, 2026

[TENTATIVE]

ORDER GRANTING MOTIONS TO COMPEL

RESPONSES TO DISCOVERY AND DEEM ADMISSIONS ADMITTED

I. BACKGROUND

On March 18, 2024, Plaintiff ("Plaintiff") Jessica Valdivia filed a complaint against Defendants Jacqueline Suzette, Juan Carlos Menjivar, Alfonso Rene Solano Ruiz, and Matheson Tri-Gas, Inc., alleging cause of action for negligence, arising out of an alleged vehicle collision.

On March 11, 2026, Defendant Matheson Tri-Gas, Inc. ("Defendant") filed the instant motions to compel Plaintiff's responses to Form Interrogatories, Set One, and to deem the Request for Admissions, Set One, admitted. Defendant also requests the Court impose sanctions of \$1,060.00 as to each motion.

No opposition has been filed.

II. LEGAL
STANDARD

Under Code of Civil Procedure section
2030.290,[1]

"If a party to whom interrogatories are directed fails to serve a timely response, the following rules apply: (b) The party propounding the interrogatories may move for an order compelling response to the interrogatories." According to section 2030.260, for a response to interrogatories to be timely, it must be served within 30 days of service.

Section 2030.290,
subdivision (c), states "the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Section

2023.030, subdivision (a), provides that “[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct.” According to section 2023.010, subdivision (d), misuse of the discovery process includes “failing to respond or to submit to an authorized method of discovery.”

Under section 2033.280, if a party fails to serve a timely response to a request for admissions, the following rules apply:

“(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

(b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).

(c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.

It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.”

III. DISCUSSION

A. Discovery Motions

On December 5, 2025, Defendant served Plaintiff with written discovery consisting of Requests for Admission (Set One); Form Interrogatories (Set One). (Koumoulis Decl. ¶ 3, Exh. A.) Responses were due on February 26, 2026. To date, no responses have been provided. (Id., ¶ 11.)

As Defendant served Plaintiff with discovery requests and Plaintiff failed to provide responses, the motions are granted.

Plaintiff is ordered to provide verified response without objections within 20 days of this order. The Court also finds Defendant is entitled to an order establishing the truth of the matters in the request for admissions served on Plaintiff.

B. Sanctions

Defendant is entitled to sanctions pursuant to section 2030.290, and section 2033.280, subdivision (c), as the motions are granted.

However, Defendant seeks \$1,060 as to each motion. The Court relies on its knowledge and experience in determining the reasonable value of the legal services provided under the circumstances in this case, e.g., routine nature of the motions, concurrently filed motions, and lack of opposition. (In re Marriage of Huntington (1992) 10 Cal.App.4th 1513, 1524 ["When the trial court is informed of the extent and nature of the legal services rendered, it may rely on its own experience and knowledge in determining their reasonable value."].) The Court has discretion to fix the amount of reasonable monetary sanctions. (Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc. (2020) 56 Cal. App. 5th 771, 791.) The Court finds a reasonable award, including both motions, is four hours of attorney's work at a rate of \$265 per hour. Therefore, the Court imposes sanctions of \$1060 on Plaintiff and counsel of record, K. Christopher Ghahreman, jointly and severally, to be paid within 20 days of this order.

IV. CONCLUSION

Defendant

Matheson Tri-Gas, Inc.'s motion to compel Plaintiff Jessica Valdivia's responses to Form Interrogatories, Set One, is GRANTED. Jessica Valdivia is ordered to provide verified, code-compliant, objection-free responses within 20 days of the hearing on the motion.

Defendant Matheson Tri-Gas, Inc.'s motion to deem Request for Admissions, Set One, admitted against Plaintiff Jessica Valdivia is GRANTED. Admissions are deemed admitted.

Defendant Matheson Tri-Gas, Inc.'s request for sanctions is GRANTED. Jessica Valdivia and counsel K. Christopher Ghahreman are ordered to pay \$1060 in sanctions to Matheson Tri-Gas, Inc. within 20 days of the hearing on the motion.

Defendant is ordered to give notice.

DATED:

July 7, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If

a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.